

**DISPOSITION OF CHARGES**

PD 468-142A (Rev. 1-06)

CASE NO.

2020-22289

BOOK & PAGE NO.

Page 1 of 1

PERSONNEL ORDER NO.

SPECIFICATIONS AGAINST

RANK/SURNAME

FIRST

M.I.

COMMAND

Police Officer Brennan,

John

63rd Precinct

SHIELD NO.

12838

TAX REGISTRY NO.

960275

DATE APPOINTED

January 6, 2016

RANK/NAME OF COMPLAINANT

Deputy Chief Prosecutor Suzanne D. O'Hare

COMMAND

CCRB-Administrative Prosecution Unit

DATE OF CHARGES

July 28, 2020

DATE TRIAL COMMENCED

March 28, 2023

DATE TRIAL CONCLUDED

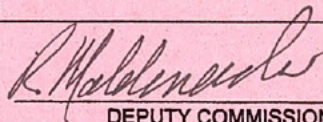
March 28, 2023

TRIAL COMMISSIONER

Honorable Paul M. Gamble

SPECIFICATIONS	DISPOSITION	RECOMMENDED PENALTY	
		PLEA ☐	TRIAL ☒
1. Police Officer John Brennan, on or about March 9, 2019, at approximately 2230, while assigned to 63 rd Precinct and on duty, in the vicinity of Avenue M and East 48 th Street, Kings County, wrongfully used force, in that he used a chokehold against § 87(2)(b)	NOT GUILTY	It is recommended that Respondent be found Not Guilty.	
2. Police Officer John Brennan, on or about March 9, 2019, at approximately 2230, while assigned to 63 rd Precinct and on duty, in the vicinity of Avenue M and East 48 th Street, Kings County, wrongfully used force, in that he restricted § 87(2)(b) breathing without police necessity.	NOT GUILTY		

Reviewed by Deputy Commissioner of Trials



DEPUTY COMMISSIONER

5/5/23

DATE

Police Commissioner's Approval:

☒ Approved☐ Disapproved☐ Other Action (Describe)

POLICE COMMISSIONER

8/14/23

DATE



POLICE DEPARTMENT

May 5, 2023

-----X

In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2020-22289
Police Officer John Brennan	:	
Tax Registry No. 960275	:	
63rd Precinct	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Nicole Jardim, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: John Tynan, Esq.
Worth, Longworth & London, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE KEECHANT L. SEWELL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer John Brennan, on or about March 9, 2019, at approximately 2230, while assigned to 63rd Precinct and on duty, in the vicinity of Avenue M and East 48th Street, Kings County, wrongfully used force, in that he used a chokehold against § 87(2)(b)

P.G. 221-01, Page 3, Prohibition 2

FORCE GUIDELINES

2. Police Officer John Brennan, on or about March 9, 2019, at approximately 2230, while assigned to 63rd Precinct and on duty, in the vicinity of Avenue M and East 48th Street, Kings County, wrongfully used force, in that he restricted § 87(2)(b) breathing without police necessity.

P.G. 221-02, Page 2, Prohibition 11

USE OF FORCE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on March 28, 2023. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB called § 87(2)(b) as a witness, and Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, the Tribunal finds Respondent Not Guilty.

ANALYSIS

This case involves an allegation of using a prohibited chokehold during a police-citizen encounter on March 9, 2019. Also at issue is whether Respondent restricted § 87(2)(b) breathing without police necessity.

The following is a summary of the facts that are not in dispute. On March 9, 2019, at approximately 2230 hours, Respondent was patrolling in an unmarked vehicle as part of the 63rd Precinct Anti-Crime Unit, working as the operator to Sergeant Behan. Respondent became aware of a car stop on East 48th Street and Avenue M involving Police Officers Noel and Cioffi,

who were both in plain clothes, but was unaware of the basis for the car stop. A music video was being recorded on the street in the same area at the same time as the car stop was conducted. As Respondent approached the vehicle, Police Officers Noel and Cioffi stood on either side while the driver, § 87(2)(b) was seated inside (T. 15, 70-71).

Video Evidence

An individual known to § 87(2)(b) video-recorded the following events. The relevant portions of the video are summarized below:

00:00-00:15 - Respondent is standing in a grey hoodie and jeans, holding a black flashlight. Respondent is next to an open car door. An unidentified voice says, "Step back, Step back." The camera is aimed toward the ground, only showing the feet of several individuals and the car door.

00:15-00:30 - The individual with the camera moves closer to the car and states, "Get out of the car, bro." Two officers take hold of § 87(2)(b) and pulling him from the vehicle. § 87(2)(b) appears to be doubled over and moves toward the ground as police officers attempt to take him out of the car. The crowd is again instructed to move back.

00:30-00:40 - Police officers begin removing § 87(2)(b) from the vehicle. The camera shows an officer in a black sweatshirt, closest to the camera, who is struggling with § 87(2)(b) to remove him from the car. § 87(2)(b) eventually ends up on his hands and knees outside the car with two officers bending over him on either side.

00:40-00:45 - Respondent moves towards § 87(2)(b) and the other officers; § 87(2)(b) is now standing upright. Three officers are moving with § 87(2)(b) attempting to restrain him. There is an officer on either side of § 87(2)(b) body, holding his arms, while Respondent stands behind him. § 87(2)(b) takes approximately five steps to his front and left.

00:45-00:50- As § 87(2)(b) steps forward, Respondent takes his right arm from behind § 87(2)(b) and wraps it across his chest. Respondent's left arm is under § 87(2)(b) left arm. Respondent's right fist is closed, holding a black flashlight.¹ Respondent's fist is in front of § 87(2)(b) left shoulder. § 87(2)(b) chin is above Respondent's forearm. Respondent takes about five steps backward while the other two officers are holding onto § 87(2)(b) arms. § 87(2)(b) yells, "Get off me, son; what are ya'll doing?" Respondent then moves back from § 87(2)(b) with both arms.

00:50-01:05- Respondent places his right hand on § 87(2)(b) and reaches for his Taser with his left hand. Respondent loses his grip with his right hand as § 87(2)(b) and the other two police officers move several steps forward. The two police officers bring § 87(2)(b) to the ground,

¹ A still image was taken from the video, displaying Respondent's arm across § 87(2)(b) body (CCRB Ex. 2).

and Respondent walks around in front of him with his Taser in his left hand. The person recording yells, "Taser him, let me see you fucking Taser him, let me see you fucking Taser him, I'll make sure you get fucking fired."

(CCRB Ex. 2).

Respondent

Respondent testified that as he and Sergeant Behan approached the driver's side of the car, Noel was already speaking with § 87(2)(b) he could not recall what they discussed² (T. 72-73, 88). Sergeant Behan told § 87(2)(b) to step out of the car (T. 74). Respondent placed his hand on § 87(2)(b) back and pulled him from the driver's seat, along with Sergeant Behan and Noel (T. 75-76). § 87(2)(b) was then in a kneeling position on the ground, facing away from Respondent; Noel and Sergeant Behan were on either side of § 87(2)(b) trying to get his hands behind his back (T. 76). Respondent testified that § 87(2)(b) appeared to be tensing up and flailing his arms (*Id.*).

Respondent testified that § 87(2)(b) then stood up, with Respondent still standing behind him (T. 77). He stated that § 87(2)(b) began stepping forward while Noel and Sergeant Behan held onto § 87(2)(b) arms (*Id.*). To prevent § 87(2)(b) from breaking free, Respondent placed his right arm across § 87(2)(b) chest, near his collarbone, with his hand held in a fist on § 87(2)(b) left shoulder (T. 77-78, 105). On cross-examination, he admitted that he pulled backward against § 87(2)(b) torso (T. 98). Responding to a question from the Tribunal, Respondent testified that the dark object seen in his right hand was a flashlight (T. 106).

² On cross-examination, Respondent conceded that he had given a statement to CCRB stating that § 87(2)(b) had asked, "Why are you stopping me?" (T. 92).

Respondent denied making contact with § 87(2)(b) neck at any point; he estimated that the connection lasted approximately three seconds (T. 78). He stated that § 87(2)(b) never asserted that he could not breathe (*Id.*).

Respondent testified that while he used his right arm to prevent § 87(2)(b) from moving forward, his left arm was at his side (T. 79). He was later confronted with CCRB's Exhibit 1 and conceded that the video showed his left arm around § 87(2)(b) torso (T. 95).

Respondent testified that because § 87(2)(b) continued to struggle against the three officers, he released his right arm from § 87(2)(b) torso and reached for his Taser (T. 80-81). After he removed his Taser and turned it on, he stepped in front of § 87(2)(b) and showed it to him; according to Respondent, within a second, § 87(2)(b) ceased struggling and placed his hands behind his back (T. 82).

§ 87(2)(b)

§ 87(2)(b) testified that on March 9, 2019, at approximately 2040 hours, he was sitting in his car, parked legally, on 48th Street in Brooklyn, watching a music video being filmed. About five minutes after § 87(2)(b) parked, an unmarked police car pulled up behind him and three police officers emerged from it (T. 15).

Police Officer Noel, whom § 87(2)(b) claimed he recognized, came to his window and asked for his license and registration. § 87(2)(b) asked why he was being stopped several times since he was parked legally. According to § 87(2)(b) the officer gestured, indicating whether the interaction could go smoothly or not, to which § 87(2)(b) then proceeded to pull out his wallet. § 87(2)(b) stated it took about two minutes to produce his wallet (T. 14-17, 26).

§ 87(2)(b) testified that he was then pulled out of his car by his neck. He stated he was pulled to the floor, and his face was dragged. He then felt a knee on his back. To his

recollection, Police Officer Noel, Respondent, and a third officer aided in removing him from the car (T. 18-19). § 87(2)(b) stated he was pulled up and then felt a forearm on his throat, choking him and pulling him backward while having his arms pulled outward simultaneously (T. 19, 21). § 87(2)(b) identified Respondent as the officer whose forearm was on his throat (*Id.*). He alleged that Respondent's arm was around his neck for at least five seconds (T. 55). He claimed that he was trying to allow the police officers to handcuff him and complied with their directions to place his hands behind his back (T. 46-47).

§ 87(2)(b) admitted he was moving his feet forward as Respondent placed his arm on him (T. 49). He conceded that he did not pass out from the alleged constriction, nor were there any marks on his neck (T. 50, 63). § 87(2)(b) also acknowledged not seeking medical attention at the scene (T. 40, 63).

Credibility

I credit Respondent's testimony as forthright, concise, and logical. Even though Respondent is interested in the outcome of this disciplinary hearing, any concern about the effect of this interest on his veracity was alleviated by the corroborative result of the video. While the video evidence was not dispositive on the issue of whether Respondent used a chokehold, his explanation for his actions captured on the video was plausible under the totality of the circumstances. Respondent's willingness to admit to using force during the encounter, an admission against interest, further enhanced his credibility.

In contrast, § 87(2)(b) statement was disjointed, self-serving, and embellished. First, some of his factual assertions during his trial testimony were not supported by the video evidence; in other cases, the video evidence made his factual claims less plausible. For instance, his assertion that the police dragged his face across the ground after being removed from his

vehicle was unsupported by the video evidence. His claims that he could not breathe due to Respondent's forearm on his throat appeared to be undercut by the portions of the video showing § 87(2)(b) yelling several times loudly at the same time Respondent allegedly used unlawful force. While § 87(2)(b) ability to speak does not mean that Respondent could not have used a prohibited chokehold, it is less likely that § 87(2)(b) breathing was obstructed.

§ 87(2)(b) stated he did not resist and was actually trying to help the officers place his hands behind his back. His assertion that he was not resisting is undermined by his testimony that he was moving away from officers. The video showed him flailing his arms and yelling, "Get off me, son."

Based upon all the surrounding circumstances, I find § 87(2)(b) an unreliable narrator of the events.

Specification 1: Use of a Chokehold

I find that CCRB has failed to meet their burden of proof by a preponderance of the credible, relevant evidence that Respondent used a chokehold.

Patrol Guide procedure 221-01 states, "Members of the service **SHALL NOT** ... use a chokehold" (emphasis in original). It defines a chokehold as follows: "A chokehold shall include, but is not limited to, any pressure to the throat or windpipe, which *may* prevent or hinder breathing or reduce intake of air" (emphasis added) (P.G. § 221-01).

This Tribunal must determine, therefore, whether Respondent's arm made contact with § 87(2)(b) throat or windpipe in a manner that may have prevented or hindered his breathing. A close review of the footage entered into evidence does not establish that Respondent used a chokehold against § 87(2)(b). The hold that Respondent admitted to using on § 87(2)(b) is seen for approximately five seconds. Respondent admitted to using his forearm across § 87(2)(b)

§ 87(2)(b) collarbone to prevent § 87(2)(b) from pulling free (CCRB Ex. 1 at 00:45-00:50). The portion of the video corresponding with the still photo image (CCRB Ex. 2) shows Respondent's arm across § 87(2)(b) upper torso area with his right fist on § 87(2)(b) left shoulder. I note that Respondent's forearm appears below § 87(2)(b) chin.

While § 87(2)(b) testified that Respondent's arm did make contact with his neck, I have found that he is an unreliable narrator of the event, as discussed above.

Having reviewed the video and still photo carefully, this Tribunal cannot reasonably conclude that the hold depicted made contact with the neck or throat area in a manner that may have restricted § 87(2)(b) breathing or reduced air intake.

Based upon the foregoing, I find Respondent Not Guilty of Specification 1.

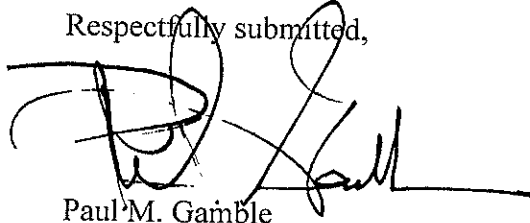
Specification 2: Obstruction of Breathing

I find that CCRB has failed to meet its burden of proof by a preponderance of the credible, relevant evidence that Respondent obstructed § 87(2)(b) breathing.

While § 87(2)(b) testified that Respondent's right arm prevented him from breathing, the other evidence, in this case, does not support that assertion. He did not assert at the time of the incident that he could not breathe at the scene and did not seek medical attention. There is no forensic evidence, such as bruising or swelling, from which the Tribunal may infer circumstantially that Respondent applied pressure to § 87(2)(b) throat, as he alleged. Finally, the video of the incident, taken by one of § 87(2)(b) associates, does not support § 87(2)(b) claim that Respondent used his right arm so that his breathing was obstructed.

Accordingly, I find Respondent Not Guilty of Specification 2.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Paul M. Gamble', written over a horizontal line.

Paul M. Gamble
Assistant Deputy Commissioner Trials

APPROVED

AUG 14 2023

EDWARD A. CABAN
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

May 4, 2023

Honorable Keechant L. Sewell
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: Police Officer John Brennan
DADS #: 2020-22289

Dear Commissioner Sewell:

The above-referenced disciplinary matter was tried on March 28, 2023, by Administrative Prosecutor, Nicole Jardim, Esq., for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), pursuant to the Memorandum of Understanding between CCRB and the New York City Police Department.

CCRB has reviewed the draft decision of Assistant Deputy Commissioner of Trials ("ADCT"), Paul M. Gamble, dated April 21, 2023. I respectfully submit the following comments regarding that draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

Respondent, Police Officer John Brennan, was charged with the following:

1. Police Officer John Brennan, on or about March 9, 2019, at approximately 2230, while assigned to 63rd Precinct, and on duty, in the vicinity of Avenue M and East 48th Street, Kings County, wrongfully used force, in that he used a chokehold against § 87(2)(b)

PG 221-01, page 3, Prohibition 2 FORCE GUIDELINES

2. Police Officer John Brennan, on or about March 9, 2019, at approximately 2230, while assigned to the 63rd Precinct, and on duty, in the vicinity of Avenue M and East 48th Street, Kings County, wrongfully used force, in that he restricted § 87(2)(b) breathing, without police necessity.

PG 221-02, page 2, Prohibition 11 USE OF FORCE

The Court found Respondent Brennan Not Guilty of Specifications One (1) and Two (2). It is respectfully requested that you reject ADCT Gamble's finding on Specification One (1) and Specification Two (2), find Respondent Brennan Guilty of Specification One (1) and Specification Two (2), and that you accept CCRB's recommended penalty of forced separation for Specification One (1) and a forfeiture of ten (10) vacation days for Specification Two (2).

STATEMENTS OF FACTS

On March 9, 2019, at approximately 10:41 p.m., several civilians were gathered at the intersection of Avenue M and East 48th Street, in Brooklyn, to record a music video. § 87(2)(b) was in his car, parked on the side of the road along Avenue M, observing the music video when PO Stephan Noel approached his vehicle. PO Noel asked § 87(2)(b) several times to provide identification and to exit the vehicle. § 87(2)(b) repeatedly asked PO Noel why he was being stopped but PO Noel did not respond. PO Brennan and Sgt. Behan were on routine patrol in the neighborhood when they came across this car stop. PO Brennan and Sgt. Behan approached the vehicle to assist PO Noel. Once he approached the vehicle, PO Brennan assisted PO Noel in pulling § 87(2)(b) out of his vehicle and onto the ground. § 87(2)(b) pushed himself back up onto his feet because he was scared and did not understand what was happening. When § 87(2)(b) got back onto his feet, PO Brennan was positioned behind him while two other officers held onto each of § 87(2)(b) arms. The two officers on each side of § 87(2)(b) attempted to push § 87(2)(b) onto the ground. At the same time, PO Brennan remained behind § 87(2)(b) and threw his right forearm across § 87(2)(b) neck pulling him backwards. PO Brennan's forearm made contact with § 87(2)(b) throat. The pressure from PO Brennan's arm limited but did not completely obstruct his breathing. § 87(2)(b) estimated that PO Brennan's arm was on his throat for approximately five seconds. There is no BWC footage, but the incident was caught on a bystander's cell phone video.

RESPONDENT BRENNAN IS GUILTY OF WRONGFULLY USING FORCE, IN THAT HE USED A CHOKEHOLD AGAINST § 87(2)(b) AND RESTRICTED HIS BREATHING

CCRB disagrees with the Court's finding that PO Brennan was not guilty of Specification One (1) and Two (2) and its conclusion that § 87(2)(b) testimony was "disjointed, self-serving, and embellished." (Draft Decision 6). The evidence submitted clearly revealed PO Brennan placing § 87(2)(b) in a chokehold and thus restricting his breathing. (CCRB Exs. 1 & 2).

PO Brennan testified that he and Sgt. Behan were on routine neighborhood patrol when they came across PO Noel stopping § 87(2)(b). PO Brennan testified that when he approached the driver's side of § 87(2)(b) vehicle, PO Noel was already speaking with § 87(2)(b) and that he did not know how long they had been speaking for or why § 87(2)(b) had been stopped initially. (Tr. 72-73, 88). He stated that Sgt. Behan told § 87(2)(b) to step out of the car and that he assisted in pulling § 87(2)(b) out of the car. When they got

§ 87(2)(b) out of the car, PO Noel and Sgt. Behan were on either side of § 87(2)(b) (Tr. 75-76). As to the incident, PO Brennan denied ever making contact with § 87(2)(b) neck at any point. Instead, he stated that he placed his right arm across § 87(2)(b) chest, near his collarbone, with his hand held in a fist on § 87(2)(b) left shoulder. (Tr. 77-78, 105). He testified that his arm remained near § 87(2)(b) collarbone for approximately three seconds. When confronted with the video on cross examination, PO Brennan admitted that he pulled backwards against § 87(2)(b) body while standing behind him (Tr. 98). PO Brennan stated that he did this because § 87(2)(b) was “tensing up and flailing his arms” when the officers were trying to arrest him. (Tr. 76, 78). On cross examination, PO Brennan discussed the TRI report he filled out the same night of the incident. He admitted that he indicated on the form that § 87(2)(b) had not use any type of force against him during the incident. (Tr. 100-104).

§ 87(2)(b) testified that he was sitting in his car, parked legally, for approximately five minutes before PO Noel approached him. He testified that he recognized PO Noel from a previous interaction and that he approached his vehicle that night to ask him for his license and registration. § 87(2)(b) testified that he asked why he was being stopped several times, but that PO Noel did not respond. (Tr. 15-17). § 87(2)(b) testified that after a few minutes of talking to PO Noel, he was pulled out of the car by his neck by PO Noel, PO Brennan and a third officer. (Tr. 18-19). He admitted that he did pull himself up from his knees onto his feet and that he was moving around a lot because he was scared. (Tr. 22). As to the incident, § 87(2)(b) testified that after he was back on his feet, he felt PO Brennan throw his arm over his shoulder and place his forearm up against his throat. He testified that he felt PO Brennan’s forearm choking him and pulling him back. (Tr. 18). § 87(2)(b) stated that PO Brennan’s forearm was pressed into his throat for five seconds making it difficult for him to breathe. (Tr. 19, 22-23).

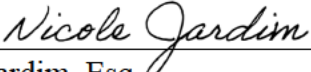
The video footage of the incident (CCRB Ex. 1) contradicts PO Brennan’s testimony and supports § 87(2)(b) testimony that PO Brennan placed him in a chokehold and restricted his breathing. A slowed down version of CCRB Exhibit 1 shows PO Brennan throw his right arm over § 87(2)(b) shoulder from behind. (CCRB Ex. 1b). The video then shows PO Brennan place his forearm directly under § 87(2)(b) chin in a manner that would have hindered his breathing (CCRB Ex. 1b). The still image taken from the video footage further illuminates the placement of PO Brennan’s arm. (CCRB Ex. 2). The still image clearly shows PO Brennan’s forearm under § 87(2)(b) chin. ADCT Gamble even admits this in his decision stating “I note that Respondent’s forearm appears below § 87(2)(b) ’chin.” (Draft Decision 8). As discussed above, on cross examination, PO Brennan also admitted that he was standing behind § 87(2)(b) and that he was pulling backwards with his arm against § 87(2)(b) torso. When evaluating the still image, it is also important to take note of § 87(2)(b) facial expression. The still image depicts § 87(2)(b) with his eyes closed, scrunching his face in a manner consistent with someone who is being choked and struggling to breathe. In addition, at trial, § 87(2)(b) testified that his breathing was, in fact, restricted. § 87(2)(b) testified that PO Brennan’s forearm was pressed up against his throat for approximately five seconds and that during that time he had trouble breathing. (Tr. 19, 22-23). Lastly, although the Court focuses on the fact that § 87(2)(b) conceded that he did not lose consciousness or say he could not breathe in the moment, it is well established that a person can be choked, and their breathing can be restricted without them losing consciousness or stating that they cannot breathe.

§ 87(2)(b) testimony at trial was credible and is supported by the evidence. However, even if we were to disregard § 87(2)(b) testimony entirely, the video evidence does not lie. The objective, credible evidence in this case clearly shows the placement of PO Brennan's arm under § 87(2)(b) chin and pressed up against his throat. Patrol Guide Section 221-01 makes clear that chokeholds are explicitly prohibited. No amount of resistance used by a civilian can justify the use of a chokehold. PO Brennan wrongfully used force in that he used a chokehold against § 87(2)(b) and in doing so restricted his breathing. PO Brennan should be found guilty of Specifications 1 and 2 and CCRB's recommended penalties of forced separation and a forfeiture of ten (10) vacation days, should be imposed.

CONCLUSION

The Court found Respondent Brennan Not Guilty of Specifications One (1) and Two (2). It is respectfully requested that you reject ADCT Gamble's finding on Specification One (1) and Specification Two (2), find Respondent Brennan Guilty of Specification One (1) and Specification Two (2), and that you accept CCRB's recommended penalty of forced separation for Specification One (1) and a forfeiture of ten (10) vacation days for Specification Two (2).

Respectfully submitted,



Nicole Jardim, Esq.
Prosecutor
Administrative Prosecution Unit
Civilian Complaint Review Board

Cc: John Tynan, Esq.

